

his conduct has been characterized by ‘malice,’ or a degree of aggravation which would entitle the plaintiff to punitive damages for another tort.”

(*Cochran v. Cochran* (1998) 65 Cal.App.4th 488, 496, quoting Rest.2d Torts, § 46, com. d, p. 73.)

Even setting aside the threshold deficiencies, Plaintiffs’ IIED claim fails on the merits. The conduct alleged against the Individual Defendants consists of personnel management decisions, supervisory criticism, a single rude phone call, an accident scene encounter where Ms. Sequeira and Ms. Woody were allegedly unlawfully detained, and a failure to take remedial action; these do not rise to the level of extreme and outrageous conduct exceeding all bounds of decency tolerated in a civilized community that is required to state a claim for IIED.

Managing personnel is not outrageous conduct beyond the bounds of human decency, but rather conduct essential to the welfare and prosperity of society. A simple pleading of personnel management activity is insufficient to support a claim of intentional infliction of emotional distress, even if improper motivation is alleged.

(*Janken, supra*, 46 Cal.App.4th at 80.)

The demurrer to the eighth cause of action for IIED against all Individual Defendants as to all Plaintiffs is **SUSTAINED WITH LEAVE TO AMEND**.

VI. Conclusion

For the foregoing reasons, the Individual Defendants’ demurrer to the fourth cause of action for harassment and to the eighth cause of action for intentional infliction of emotional distress is **SUSTAINED IN ITS ENTIRETY WITH LEAVE TO AMEND** as to all Plaintiffs.

Plaintiff has 15 days from service of notice of entry of this order to file any amended pleading.

9. 9:00 AM CASE NUMBER: C25-02606

CASE NAME: JAMEIZ TERRELL VS. BISA FRENCH

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: CITY OF RICHMOND

TENTATIVE RULING:

Before the Court is Defendants City of Richmond (“the City”) and Richmond Police Department’s (“RPD”) (collectively “Defendants”) demurrer. The demurrer relates to Plaintiffs Jameiz Terrell, Michelle Sequeira, and Alayna Woody’s (collectively “Plaintiffs”) Complaint for (1) Sex Discrimination [all Plaintiffs against the City and RPD]; (2) Race Discrimination [Ms. Terrell against the City and RPD]; (3) Sexual Orientation Discrimination [Ms. Terrell against the City and RPD]; (4) Harassment [all Plaintiffs against all Defendants]; (5) Retaliation [all Plaintiffs against the City and RPD]; (6) Failure to Prevent Discrimination and Harassment [all Plaintiffs against the City and RPD]; (7) Violation of Labor Code sections 233, 234, and 246.5 [Ms. Terrell against the City and RPD]; and (8) Intentional Infliction of Emotional Distress [all Plaintiffs against Bisa French, Enrik Melgoza, Miguel Castillo, and Joseph England].

Defendants demur to the first through seventh causes of action pursuant to Code of Civil Procedure section 430.10. As to the first through sixth causes of action, Defendants contend that (1) each fails to allege facts sufficient to constitute a cause of action (Code Civ. Proc., § 430.10(e)) and (2) the allegations render each claim uncertain and unintelligible (Code Civ. Proc., § 430.10(f)). As to the seventh cause of action for violation of Labor Code sections 233, 234, 246.5, Defendants contend that the claim fails because Ms. Terrell failed to exhaust her administrative remedies by filing a claim with the City as required by the Government Claims Act, and because the allegations render the claim uncertain and unintelligible (Code Civ. Proc., § 430.10(f)).

Plaintiffs oppose Defendants’ demurrer on the grounds that it improperly attempts to resolve factual disputes and impose evidentiary burdens beyond California’s liberal pleading requirements. Plaintiffs contend that each plaintiff’s allegations, taken as a whole, establish circumstantial evidence of

discriminatory motive and a pattern of sex-based hostile treatment sufficient to state claims for discrimination, harassment, and retaliation. Plaintiffs further contend that the Government Claims Act's limitation on suits for money or damages does not bar equitable relief expressly authorized by the Labor Code statutes at issue.

For the following reasons, Defendants' demurrer to Plaintiffs' Complaint is **SUSTAINED IN ITS ENTIRETY WITH LEAVE TO AMEND** as to all applicable Plaintiffs.

Plaintiff has 15 days from service of notice of entry of this order to file any amended pleading.

I. Factual Allegations and Background

This suit arises out of an employment dispute between current and former police officers with the Richmond Police Department ("RPD"). (Complaint ("Compl.") at 2:2-4.)

a. Jameiz Terrell

i. Background and Performance History

Ms. Terrell, a Black, lesbian woman, graduated from the Napa Valley Police Academy in 2015. (Compl. at 4:17-18; 6:26-28.) On July 11, 2015, she was hired by RPD, and in December of that year she completed her training and became a sworn peace officer. (*Ibid.*) In April 2019, Ms. Terrell became a Gang Unit Detective and SWAT Team Operator. (*Id.* at 7:4-6.) She became a member of the Tactical Response Team on January 6, 2020. (*Ibid.*) From 2019 to 2023 she served as a Task Force Officer with the federal bureau of Alcohol, Tobacco, and Firearms. (*Id.* at 7:7-8.) Ms. Terrell was employed continuously by RPD until her alleged constructive termination on October 26, 2023. (*Id.* at 4:16-17; 6:28-7:1.)

While employed by RPD, Ms. Terrell completed approximately 75 certified training courses; in 2017 she was awarded RPD's Community Policing Officer of the Year; and in 2018 she received a commendation for dedication and reduction of violence. (Compl. at 7:2-4.)

Ms. Terrell alleges that she was targeted and "experienced severe

discrimination, harassment, and retaliation” at the hands of supervisor Nathan Lonso. (Compl. at 7:14-15.) She alleges that he “singl[ed] her out for unwarranted scrutiny and attempt[ed] to sabotage her career while providing preferential treatment to her nonprotected colleagues.” (*Id.* at 7:15-17.) Her Complaint does not elaborate on who the nonprotected colleagues were or what preferential treatment they received.

In April of 2020, Ms. Terrell alleges she and another officer filed a complaint against Mr. Lonso; the complaint prompted an Internal Affairs investigation, which led to Mr. Lonso’s termination. (Compl. at 7:17-19.) Ms. Terrell alleges that Mr. Lonso was ultimately reinstated by RPD. (*Ibid.*)

ii. Road Rage Incident

On October 17, 2020, Ms. Terrell was allegedly involved in an off-duty, road rage incident in Fairfield, California, with gang-related subjects wherein she alleges “she brandished her firearm in an attempt to defuse the situation.” (Compl. at 7:23-24.) The Fairfield Police Department investigated the incident and concluded no crime had occurred. (*Id.* at 7: 25-26.) Ms. Terrell alleges she followed department protocol by immediately reporting the incident to RPD. (*Id.* at 7:26.) Nearly a year later, on October 14, 2021, RPD proposed disciplining Ms. Terrell for the incident by placing her on a 10-hour suspension without pay and removing her from her Special Response Team assignment. (*Id.* at 7:27-28.)

A subsequent *Skelly* Hearing issued a finding on March 3, 2022, that, because Ms. Terrell had received “numerous awards and commendations for outstanding police work” even as recently as January of 2022, the proposed disciplinary action of removing Ms. Terrell from her Special Response Team assignment was “much too severe and [was] NOT SUSTAINED.” (Compl. at 7:28-8:9.) The *Skelly* officer also noted that while allegations of inequitable treatment had been raised, issues related to discrimination were outside the scope of the *Skelly* officer’s assignment, and the officer instead “urg[ed] the “Human Resources Department [to] conduct a thorough information.”” (*Id.* at 8:3-6.) Ms. Terrell alleges “on information and belief” that no human resources inquiry was undertaken into the discrimination issue flagged by the *Skelly*

officer. (*Id.* at 8:6-7.)

RPD opted to overrule the *Skelly* officer's findings and remove Ms. Terrell from her position on the Special Response Team anyway. (Compl. at 8:9.) On August 22, 2023, however, the department reversed course and agreed to adopt the *Skelly* officer's findings; accordingly, Ms. Terrell was placed back on her Special Response Team assignment. (*Id.* at 8:8-12.)

iii. Flying Armed

Ms. Terrell alleges that during an RPD wiretap investigation on which Ms. Terrell was working, communications were intercepted on August 19, 2021, that indicated that a suspect with whom Ms. Terrell had recent contact, would coincidentally be on the same aircraft as Ms. Terrell for an upcoming flight. (Compl. 8:15-18.) With the apparent blessing of ATF, Ms. Terrell opted to fly armed for her safety due to her recent contact with the suspect. (*Id.* at 8:18-20.) On August 9, 2022, RPD issued a summary reprimand regarding the incident, stemming from an anonymous complaint received by the department. (*Id.* at 8:20-22.) Ms. Terrell authored a rebuttal to the reprimand wherein she stated she believed the discipline was retaliation for her complaint about Mr. Lonso; Ms. Terrell alleges that RPD did not act on her report of the retaliation. (*Id.* at 8:22-23.)

iv. Alleged Pattern of Targeting by Castillo and Melgoza

Enrik Melgoza and Miguel Castillo are alleged to be close friends of Mr. Lonso's. (Compl. at 8:13-14.) At a December 14, 2022 arbitration hearing regarding Mr. Lonso's termination, Mr. Castillo testified as a character witness for Mr. Lonso. (*Id.* at 9:18-19.) Ms. Terrell alleges Mr. Castillo and Mr. Melgoza repeatedly targeted her during the course of her employment with RPD. (*Id.* at 8:13-15.)

v. Melgoza

On January 19, 2022, Ms. Terrell alleges Mr. Melgoza told her she would be switched to Beat 7. (Compl. at 8:24-28.) Ms. Terrell alleges that Mr. Melgoza's reasoning for the switch – that he believed another officer, who sued the department for discrimination, harassment, and retaliation, would not provide

Ms. Terrell proper cover during proactivity stops – was pretextual. (*Id.* at 8:24-28.) She alleges that “Beat 7 was known as the busiest beat in the city, where officers were placed when they were being punished.” (*Id.* at 8:27-28.) She also alleges that during the same period, “nonprotected officers with less seniority than Terrell received preferential treatment in the form of easier beats.” (*Id.* at 8:28-9:2.)

On January 2, 2023, Mr. Melgoza allegedly completed a Transfer Request endorsement declining to recommend Ms. Terrell for the position of Field Training Officer (“FTO”), citing excessive sick leave usage in 2022 and claiming that Ms. Terrell struggled with basic patrol functions and decision-making. (Compl. at 9:20-27.) Ms. Terrell alleges such performance issues had never previously been raised with her. (*Id.* at 9:25-26.) On January 9, 2023, Mr. Melgoza confirmed to Ms. Terrell that the sick leave usage was his reason for the denial. (*Id.* at 9:26-27.) It was only after the Richmond Police Officers Association (“RPOA”) complained on her behalf that Ms. Terrell was granted an interview for the FTO position. (*Id.* at 9:28-10:2.) A lengthy evaluation was subsequently added to her personnel file, which RPD Police Chief Bisa French later ordered removed. (*Id.* at 10:2-3.) Ms. Terrell alleges that RPD was ultimately required to modify its FTO endorsement process as a result of Mr. Melgoza’s conduct, though the Complaint does not elaborate on the nature of that modification. (*Id.* at 9:27-28.)

On March 13, 2023, Mr. Melgoza allegedly presented Ms. Terrell with her 2022 performance evaluation and directed her to sign and return it the same day. (Compl. at 10:4-5.) The evaluation criticized Ms. Terrell for excessive sick leave usage, comparing her usage to the purported team average and including approximately 40 hours of workers’ compensation-related medical leave in that figure. (*Id.* at 10:5-9.) The evaluation also referenced the 2021 flying-armed incident and, based on a purported random audit of Ms. Terrell’s body camera footage conducted by Castillo, criticized her for discussing her firearm with a civilian. (*Id.* at 10:10-15.) Ms. Terrell received a verbal warning based on the body camera finding. (*Id.* at 10:15.) Chief French determined that an Internal

Affairs investigation was unwarranted but allegedly advised Ms. Terrell that “they were ‘gunning’ for her.” (*Id.* at 10:16-17.) The Complaint does not clarify who specifically “they” is, however it does allege that nonprotected officers who used sick leave were not subject to comparable scrutiny. (*Id.* at 10:9-10, 16-17.)

On March 21, 2023, a meeting was allegedly held with Mr. Melgoza, Ms. Terrell, the RPOA President, and another officer regarding Ms. Terrell’s performance evaluation. (Compl. at 10:18-19.) Mr. Melgoza agreed to revise certain sections, including the sick leave discussion, but failed to do so. (*Id.* at 10:20-22.)

On June 5, 2023, Mr. Melgoza allegedly issued Ms. Terrell a negative comment card for responding to work emails while on sick leave. (Compl. at 10: 23-24.)

On September 21, 2023, Mr. Melgoza, as SWAT team leader, allegedly placed Ms. Terrell on rear security without explanation rather than in her usual position in the stacking order, replacing her with a nonprotected officer who had not attended SWAT school. (Compl. at 10: 25-27.)

vi. Castillo

On March 16, 2022, Mr. Castillo and Ms. Terrell allegedly responded to a child custody dispute. (Compl. at 9:3.) A lieutenant allegedly ordered the child to be left with the mother however Mr. Castillo went to the mother’s home and took the child, which prompted the mother to complain to the Richmond City Council. (*Id.* at 9:4-5.) An Internal Affairs investigation into Castillo’s conduct followed. (*Id.* at 9:6.) The investigating officer, then-sergeant Joseph England, allegedly concluded that Mr. Castillo was targeting Ms. Terrell. (*Id.* at 9:6-7.) The Complaint does not specify what conduct constituted the targeting, how the incident adversely affected Ms. Terrell, or what connection it bore to her protected status or activity.

On August 15, 2022, Mr. Castillo allegedly directed Ms. Terrell to respond as primary officer to a service call outside her beat while she was already on another call. (Compl. at 9:8-9.) Several days later, on August 18, 2022, Mr. Castillo allegedly telephoned Ms. Terrell demanding to know what report she

was writing and its case number, then hung up on her without further explanation. (*Id.* at 9:10-11.)

vii. Detective Selection

On November 9, 2022, the Office of the Chief of Police released new assignment selections and Ms. Terrell allegedly learned she had not been selected as a detective. (Compl. at 9:12-13.) When she sought to look at the selection paperwork to find out how she scored she discovered she was listed as “appointed” under the Domestic and Sexual Violence Unit. (*Id.* at 9:13-15.) Ms. Terrell allegedly followed up with Chief French’s secretary to inquire about the inconsistency and “the secretary replied that she thought Terrell had been selected and was uncertain what changed.” (*Id.* at 9:15-17.) The Complaint does not identify who made the final section decision or on what basis.

viii. Request for Reassignment

Ms. Terrell allegedly made four requests (February 1, 2022, November 8, 2022, March 23, 2023, and June 27, 2023) to Captain Matt Stonebreaker to be transferred from Team 2 to Team 1 to avoid supervision by Mr. Melgoza and Mr. Castillo. (Compl. at 11:2-6.) In her final request, Ms. Terrell noted that adverse incidents had continued since her prior requests; RPD denied all four requests. (*Id.* at 11:6-9.)

ix. Resignation

On October 23, 2023, Ms. Terrell submitted her resignation, effective October 26, 2023. (Compl. at 11:12.) During her exit interview, Chief French allegedly acknowledged that Mr. Castillo and Mr. Melgoza had been targeting Ms. Terrell and stated that Chief French had been unable to protect Ms. Terrell. (*Id.* at 11:13-15.) On her final day, Ms. Terrell allegedly reported to SWAT team training and was directed by Melgoza to report to desk duty instead. (*Id.* at 11:16-18.)

b. Michelle Sequeira

i. Background and Performance History

Ms. Sequeira, a woman, was hired by RPD as a police officer trainee on May 13,

2019. (Compl. at 11:22-23.) She became a sworn police officer and promoted to the rank of Police Officer on November 18, 2019. (*Id.* at 11:23-24.) Ms. Sequeira was employed continuously by RPD until her termination on July 3, 2025. (*Id.* at 11:26-27.)

Ms. Sequeira received a performance appraisal for the period of November 18, 2019, through November 18, 2020, with an overall rating of “Meets Expectations.” (Compl. at 12:6-8.) The appraisal noted that her report writing had progressively improved and her reports had become complete and concise. (*Id.* at 12:8-9.) She received a second appraisal for the period of November 18, 2020, through November 18, 2021, again rated “Meets Expectations.” (*Id.* at 12:10-12.) That appraisal noted that she had continuously improved her report writing and made an effort to seek assistance from more tenured officers. (*Id.* at 12:12-14.)

In March of 2024, Ms. Sequeira received a Bureau Commendation for her role in the safe surrender of a homicide suspect and recovery of evidence. (Compl. at 12:1-3.) She also received commendations from the chiefs of police of Pittsburg and San Francisco in September and October of 2023. (*Id.* at 12:3-5.)

i. Motor Vehicle Accident

On June 17, 2022, while on patrol Ms. Sequeira was allegedly involved in a motor vehicle collision at the intersection of 34th Street and McBryde Avenue in Richmond. (Compl. at 12:15-16.) Ms. Sequeira, traveling on 34th Street, failed to yield to a vehicle traveling on McBryde Avenue. (*Id.* at 12:16-18.) In the aftermath of the collision, she allegedly believed she had stopped before proceeding through the intersection. (*Id.* at 12:18-19.)

i. Performance Improvement Plan

In or about November of 2022, Ms. Sequeira received her performance appraisal for the period of November 18, 2021, through November 18, 2022, which was rated “Meets Expectations.” (Compl. at 12:20-22.) Despite prior appraisals reflecting improvement in her report writing, the appraisal allegedly criticized her for struggling with timely report submission. (*Id.* at 12:22-24.) On

November 13, 2022, she was placed on a Performance Improvement Plan (“PIP”), citing spelling and grammatical errors, incomplete preliminary investigations, and delayed report submissions. (*Id.* at 12:24-26.) Ms. Sequeira alleges “on information and belief” that nonprotected officers were not subject to the same treatment. (*Id.* at 12:26-27.)

/. Letter of Instruction and Removal from Collateral Intelligence Unit

On December 26, 2022, Ms. Sequeira was allegedly assigned to Beat 8. (Compl. at 13:3.) While on that assignment, she failed to respond to a text message from Mr. Castillo because she was using the restroom and was unable to hear him on a radio call. (*Id.* at 13:4-6.) Mr. Castillo had allegedly been tracking Ms. Sequeira’s location via GPS, which Ms. Sequeira alleges was in violation of RPD policy. (*Id.* at 13:6-7.) Mr. Castillo criticized Ms. Sequeira for using the restroom at RPD’s dispatch building and directed her to use a gas station instead; she alleges this was “in marked contrast to the treatment of other officers.” (*Id.* at 13:7-9.) On January 18, 2023, Ms. Sequeira was issued a Letter of Instruction based on accusations that she failed to follow a lawful order from Mr. Castillo and was disrespectful and unprofessional. (*Id.* at 13:1-2.) She was subsequently removed from her assignment on the Collateral Intelligence Unit without being informed of the disciplinary action or offered union representation. (*Id.* at 13:9-11.)

/. Domestic Violence Call and Letter of Reprimand

On August 6, 2023, Ms. Sequeira allegedly responded to a domestic violence call and made contact with the male suspect. (Compl. at 13:15-16.) While gathering the suspect’s information, she was allegedly instructed by a sergeant to contact the victim instead. (*Id.* at 13:16-18.) To that end, she placed the suspect in the rear of her patrol car and contacted the victim. (*Id.* at 13:18-19.) She later returned to her patrol vehicle and found that the suspect had been taken by other officers to RPD for booking. (*Id.* at 13:19-20.) A citizen subsequently found the suspect’s wallet and returned it to the department. (*Id.* at 13:20.) When the suspect later contacted RPD claiming money was missing from his wallet, Ms. Sequeira was allegedly the only officer investigated in

relation to the incident. (*Id.* at 13:20-22.) On February 15, 2024, Ms. Sequeira received a Letter of Reprimand from Chief French, which alleged that Ms. Sequeira “improperly handled and cared for potential evidence or personal property belonging to another person, ultimately losing a wallet that contained personal identification and \$1,320 in cash.” (*Id.* at 13:22-25.)

i. Administrative Leave and Accident Scene Incident

On or about April 16, 2024, Chief French allegedly learned of the existence of a citizen’s security camera that captured Ms. Sequeira’s June 17, 2022, motor vehicle collision. (Compl. at 13:26-27.) The video from the incident showed that Ms. Sequeira “failed to come to a complete stop before proceeding through the intersection.” (*Id.* at 13:27-28.) Allegedly, based on the new evidence, Ms. Sequeira was placed on administrative leave on April 18, 2024, pending the outcome of an investigation. (*Id.* at 13:28-14:2.) The notice of administrative leave Ms. Sequeira received did not disclose the basis for the investigation and it was not until April 23, 2024, that she learned that it related to the 2022 motor vehicle collision. (*Id.* at 14:2-6.)

Upon learning the nature of the investigation and administrative leave, Ms. Sequeira allegedly met fellow-police officer and plaintiff Alayna Woody at the accident scene at 34th Street and McBryde Avenue on April 23, 2024, so Ms. Sequeira could reconstruct the accident and refresh her recollection of it. (Compl. at 14:5-9; 17:1-2.) Both officers were off duty. (*Id.* at 17:3-4.) Ms. Sequeira’s personal vehicle was lawfully parked on the public street, and the two officers walked the four corners of the intersection. (*Id.* at 14:9-11; 17:3-4.)

Then, as Ms. Sequeira and Ms. Woody sat in Ms. Sequeira’s parked vehicle, a black unmarked Ford Explorer patrol vehicle allegedly approached and parked facing the wrong direction on the street, nose-to-nose approximately two feet from Ms. Sequeira’s vehicle, restricting her ability to move. (Compl. at 14:11-13; 17:4-6.) The Ford Explorer carried the Internal Affairs Investigator Mr. England and RPD’s Manager of the Office of Professional Accountability, Eddie Aubrey. (*Id.* at 14:11-13.)

Mr. England allegedly instructed Ms. Woody to exit the vehicle in a stern tone and ordered her to stand behind it – a position Ms. Woody recognized, based on her training and experience, as where officers place persons being detained during a traffic enforcement stop. (Compl. at 17:6-9.) Mr. England and Mr. Aubrey then questioned Ms. Sequeira while she remained seated in the vehicle, with Mr. England acting as cover officer. (*Id.* at 17:9-11.)

Mr. England and Mr. Aubrey subsequently instructed Ms. Woody to leave the area, threatening to “call [her] in.” (Compl. at 17:11-12.) Ms. Woody, fearful of further adverse employment action, complied and drove away. (*Id.* at 17:12-14.) Ms. Sequeira alleges she, too, was threatened by Mr. England and Mr. Aubrey, although she does not elaborate on what threats were made against her specifically. (*Id.* at 14:15-16.) Plaintiffs both allege the encounter constituted an unlawful detention. (*Id.* at 14:13-15.)

Ms. Woody subsequently filed a complaint against Mr. England and Mr. Aubrey based on this incident, discussed at greater length *infra*, and Mr. England and Mr. Aubrey were removed from the investigation into Ms. Sequeira’s motor vehicle collision. (Compl. at 14:18-20.) RPD hired Karen Kramer from Kramer Workplace Investigations to take over the investigation into Ms. Sequeira’s motor vehicle collision. (*Id.* at 14:20-22.) Kramer Workplace Investigations is allegedly “a long-time public sector investigator, particularly in law enforcement investigations,” and thus, according to Plaintiffs’ Complaint, “hardly an independent and unbiased investigator.” (*Id.* at 14:20-22.)

In December of 2024, while still on administrative leave, Ms. Sequeira received a performance appraisal for the period of November 18, 2023, to November 18, 2024. (Compl. at 14:23-26.) Her overall rating was “Meets Expectations” although the appraisal was limited in nature because she was on administrative leave for most of the rating period. (*Id.* at 14:24-26.)

i. Termination

On February 6, 2025, Ms. Sequeira received a Notice of Intent to Terminate from Chief French. (Compl. at 14:27.) The notice stated that Ms. Sequeira

“falsely claimed on multiple occasions – under oath and under penalty of perjury – that [she] stopped at the stop sign prior to hitting [the other] vehicle on June 17, 2022.” (*Id.* at 14:28-15:1.) The notice also included the allegation that Ms. Sequeira engaged in “deceitful misconduct.” (*Id.* at 15:2.)

A *Skelly* hearing was convened and Richmond Fire Chief Aaron Osorio, who served as *Skelly* officer, sustained the proposed discipline. (Compl. at 15:4-5.) Ms. Sequeira alleges that Chief Osorio’s finding stemmed from a “clear conflict of interest,” however she does not elaborate on the basis of the conflict. (*Id.* at 15:5-6.)

On July 3, 2025, Ms. Sequeira was terminated. (Compl. at 15:7.) The Notice of Final Discipline again stated that Ms. Sequeira had falsely claimed on multiple occasions, under oath and under penalty of perjury, that she stopped at the stop sign before the June 17, 2022 collision, and again characterized her conduct as “deceitful misconduct.” (*Id.* at 15:8-15.) Ms. Sequeira alleges she genuinely believed she had stopped and the characterization of her conduct as deliberate dishonesty is without support. (*Id.* at 15:10-15.)

Ms. Sequeira alleges that the Notice of Final Discipline also included additional accusations she characterizes as false and misleading, including a reference to an unrelated minor traffic collision on August 6, 2021, and the December 26, 2022 incident with Mr. Castillo where RPD alleged she was “disrespectful and unprofessional” for what she describes as “protesting her mistreatment by defendant Castillo.” (Compl. at 15:21-28.) She alleges that these additional accusations illustrate Defendants’ disparate treatment of female officers in that male officers allegedly engaged in serious misconduct with little or no consequences during the same period. (*Id.* at 15:16-20.) Plaintiffs’ Complaint does not identify any specific male officers or describe the nature of their alleged misconduct apart from describing the conduct as “serious civil rights violations.” (*Ibid.*)

On August 11, 2025, the Commission on Peace Officer Standards and Training (“POST”) notified Ms. Sequeira that it had closed its case against her for

dishonesty without further action, citing a lack of sufficient evidence to substantiate the alleged conduct by clear and convincing evidence or a determination that the conduct did not warrant decertification or suspension. (Compl. At 16:2-9.)

Ms. Sequeira filed a complaint with the CRD on September 10, 2025, and sought and received an immediate right-to-sue letter. (Compl. at 4:5-8, Exhibit B.)

c. Alayna Woody

i. Background and Performance History

Ms. Woody, a woman, was hired as a Police Officer Trainee (“PTO”) by RPD on May 13, 2019, and became a sworn peace officer promoted to the rank of Police Officer on November 18, 2019. (Compl. at 16:14-16.) She was released from the PTO program to solo beat patrol May 31, 2020. (*Id.* at 16:16-17.)

Ms. Woody received numerous commendations during her tenure with RPD. (Compl. at 16:18-25.) On March 5, 2021, she was praised for her patience and professionalism in handling a call involving a mentally unstable and combative person. (*Id.* at 16:18-20.) On April 18, 2021, she received a summary commendation for conducting 112 vehicle enforcement stops resulting in five firearm-related arrests. (*Id.* at 16:20-22.) She received additional commendations on December 9, 2022, October 19, 2023, and March 22, 2024. (*Id.* at 16:22-23.) In March 2024 she also received a Bureau Commendation for her role in the safe surrender of a homicide suspect and recovery of evidence. (*Id.* at 16:23-25.)

i. Alleged Pattern of Targeting by Castillo

Ms. Woody alleges that, like Ms. Terrell and Ms. Sequeira, she experienced problems with Mr. Castillo, who singled her out for unwarranted criticism and other adverse employment actions. (Compl. at 16:26-28.) The Complaint does not identify any specific incidents, dates, or conduct attributable to Mr. Castillo with respect to Ms. Woody apart from the vague allegation that Mr. Castillo “express[ed] hostility toward any women who dared to question his authority.” (*Ibid.*)

i. Complaint About England and Aubrey Accident Scene Incident

On April 23, 2024, Ms. Woody accompanied Ms. Sequeira to the accident scene at 34th Street and McBryde Avenue where she alleges she was illegally detained by Mr. England and Mr. Aubrey. (see *ante*, “Administrative Leave and Accident Scene Incident.”) On or about April 25, 2024, Ms. Woody filed a complaint against Mr. England and Mr. Aubrey regarding the encounter. (Compl. at 17:14-15.) In her complaint, Ms. Woody wrote:

I no longer feel as safe and question my safety and the rights I have in my place of employment. I also have lost faith and trust in the department’s [Internal Affairs] process and ultimately the chief who they report to. ... I have serious concerns over how my future treatment in the department will be, retaliation for filing this complaint, for what transpired and for my own emotional, physical, and mental health. This was a shameful exercise of the department’s power and needs to be addressed immediately.

(Compl. at 17:14-20.)

Shortly thereafter, Chief French met with Ms. Woody; the chief characterized Ms. Woody’s allegations as serious and assured her she would be protected from retaliation. (Compl. at 17:21-22.) Chief French subsequently promoted Mr. England from sergeant to lieutenant. (*Id.* at 9:7; 17:23-24.) Ms. Woody alleges that, in contrast to the treatment of other officers (though she does not identify any other officers or a specific policy), Mr. England was not placed on desk duty during the investigation of her complaint. (*Id.* at 17:24-25.)

Chief French assigned investigation into Ms. Woody’s complaint to Karen Kramer of Kramer Workplace Investigations – the same investigator concurrently investigating the accusations against Ms. Sequeira. (Compl. 14:20-22; 17:26-28.) Although video of Ms. Sequeira’s accident at the same intersection was located from years earlier, Defendants represented that no

video of the alleged unlawful detention existed. (*Id.* at 18:1-2.) Ms. Woody alleges “on information and belief” that Mr. England deliberately concealed the video to cover up his misconduct. (*Id.* at 18:2-3.) She alleges no factual basis for her information and belief.

On January 15, 2025, RPD issued a memorandum to Ms. Woody notifying her that Kramer did not sustain her complaint that Mr. England and Mr. Aubrey had unlawfully detained her. (Compl. at 18:4-5.) Ms. Woody alleges that Kramer’s investigation was “incompetent and corrupt.” (*Id.* at 18:19-20.)

/. Letters of Instruction

On December 30, 2023, and September 20, 2024, Ms. Woody received what she alleges were “unwarranted” Letters of Instruction, a form of written warning, for her report preparation. (Compl. at 18:22-23.) She alleges “on information and belief” that nonprotected officers were not subject to the same treatment. (*Id.* at 18:21-24.) Notably, Ms. Woody’s performance appraisals for the period of November 2023 through November 2024 reflected that she consistently delivered exemplary performance and that her written reports were precise, well-structured, and submitted promptly. (*Id.* at 18:25-28.) The Complaint does not identify who issued the Letters of Instruction or attempt to explain the discrepancy between the written warnings and contemporaneous performance appraisal.

II. Procedural Background

Ms. Terrell filed a complaint with the California Civil Rights Department (“CRD”) on September 20, 2024, and sought and received an immediate right-to-sue letter. (Compl. at Exhibit A.) Ms. Sequeira and Ms. Woody filed their own complaints with the CRD on September 10, 2025, and sought and received immediate right-to-sue letters. (Compl. at 4:5-8, Exhibit B, Exhibit C.)

The judicial complaint in this action was filed September 11, 2025. The City of Richmond and RPD filed the instant demurrer to challenge the claims against them in this action on November 24, 2025; the individual defendants in this case – Bisa French, Enrik Melgoza, Miguel Castillo, and Joseph England –

collectively filed their own demurrer on January 9, 2026, which is heard concurrently with this motion.

III. Meet-and-Confer Efforts

Before a responding party files a demurrer, the parties shall meet and confer at least five days prior to the date the responsive pleading is due, in person, by telephone, or by videoconference. (Code Civ. Proc., § 430.41(a)(2).) Here, the responsive pleading was initially due October 17, 2025, however Defendants' counsel Nicholas Grether requested and received three extensions from Plaintiff's counsel, Robert Schwartz, ultimately making the responsive pleading due November 24, 2025. (Grether Declaration ("Grether Dec.") ¶¶ 4, 6, 7.) This made the statutory meet-and-confer deadline November 19, 2025. (*Id.* ¶ 9; Code Civ. Proc., § 430.41(a)(2).) On November 12, Mr. Grether emailed Mr. Schwartz about setting up a time to meet and confer on the grounds for Defendants' demurrer, however Mr. Schwartz did not reply to the email until November 20, 2025, one day after the statutory deadline to meet and confer had passed. (Grether Dec. ¶¶ 8-10.) Ultimately, the parties were able to meet and confer telephonically on November 21, 2025, however the disputes were not resolved, and this demurrer followed on November 24, 2025. (*Id.* ¶¶ 11-12.)

The Court is satisfied that Defendants met their statutory burden under California Code of Civil Procedure section 430.41.

IV. Legal Standard

"A demurrer tests the sufficiency of the complaint by raising questions of law." (*Schmidt v. Foundation Health* (1995) 35 Cal.App.4th 1702, 1706.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer does not test the truth or accuracy of the facts alleged in the complaint; the court assumes the truth of all properly pleaded factual allegations. (*Los Altos Golf & Country Club v. County of Santa Clara* (2008) 165 Cal.App.4th 198, 203.)

A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.)

“Plaintiff may allege on information and belief any matters that are not within his personal knowledge, if he has information leading him to believe that the allegations are true.” (*Pridonoff v. Balokovich* (1951) 36 Cal.2d 788, 792.) “[A] pleading that [does] no more than assert boilerplate allegations [however]...would not be sufficient nor would allegations of information and belief that merely asserted the facts so alleged without alleging such information that ‘lead[s] [the plaintiff] to believe that the allegations are true.’” (*Doe, supra*, 42 Cal.4th at 551, fn. 5; see also *Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, 1158-59.)

The complaint must be “liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc. § 452.) “[I]f it appears that the plaintiff is entitled to any relief against the defendant, the complaint will be held good, even though the facts may not be clearly stated.” (*Community Cause v. Boatwright* (1981) 124 Cal.App.3d 888, 896.) Regardless of whether a Plaintiff has requested leave to amend, it is an abuse of discretion to sustain a demurrer to an initial complaint without leave to amend unless the complaint shows on its face that it is incapable of amendment. (*Cabral v. Soares* (2007) 157 Cal.App.4th 1234, 1240; *Eghtesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 411.)

V. Analysis

a. Ms. Terrell

i. Discrimination (Sex, Race, and Sexual Orientation)

California’s Fair Employment and Housing Act (“FEHA”) holds that it is an unlawful employment practice to bar or discharge a person from employment or discriminate against the person in compensation or in terms, conditions, or

privileges of employment, based on sex, race, or sexual orientation. (Gov. Code, § 12940(a).)

To state a claim for discrimination, a plaintiff must show (1) she was a member of a protected class, (2) she was performing competently in the position she held, (3) she suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive. (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 355.) The plaintiff must also produce evidence sufficient to show that discrimination was a substantial motivating factor in the adverse employment action. (*Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 232.)

In her complaint, a plaintiff must plead the essential facts of the case with particularity sufficient to acquaint a defendant with the nature, source and extent of the FEHA cause of action. (*Alch v. Superior Court* (2004) 122 Cal.App.4th 339, 382.)

Ms. Terrell is a woman, she is Black, and she is a lesbian, thus she is a member of protected classes. (Compl. at 19:13-14; 20:24-25; 22:2-3.)

Ms. Terrell alleges she was awarded RPD's Community Policing Officer of the Year; and in 2018 she received a commendation for dedication and reduction of violence. (Compl. at 7:2-4.) She also alleges she was promoted to Gang Unit Detective and SWAT Team Operator in April 2019; she became a member of the Tactical Response Team January 6, 2020; and she served as a Task Force Officer with the federal bureau of Alcohol, Tobacco, and Firearm. (*Id.* at 7:4-8.) She adequately alleges competent performance.

Ms. Terrell alleges a host of adverse employment actions, including allegedly unwarranted discipline, assignment to less-preferred duty, being passed over for detective assignment, and more. (Compl. at 7:23-28; 8:15-22; 8:24-9:2; 9:20-10:3; 10:5-17; 10:25-27; 9:12-13.)

Ms. Terrell fails, however, to allege a nexus between the adverse employment actions and her sex, race, or sexual orientation, much less that any was a substantial motivating factor in those actions. Indeed, her own allegations belie

this conclusory claim; she explicitly alleges that “[b]ecause of her complaint against Lonso, Terrell faced swift and blatant retaliation.” (Compl. at 7:20-21.) She then goes on to describe a pattern of targeting by Mr. Castillo and Mr. Melgoza, whom she identifies as “close friends of Lonso.” She also describes her contemporaneous rebuttal to the flying-armed reprimand as stating that ““this discipline is retaliatory in nature for [her earlier complaint against Lonso].”” (*Id.* at 8:13-15; 22-23.) Her allegations consistently and repeatedly attribute the adverse employment actions taken against her to personal retaliation for the complaint lodged against Mr. Lonso, not to her sex, race, or sexual orientation.

While the Complaint includes two passing and vague references to comparators – one to “nonprotected officers with less seniority” receiving easier beats (Compl. at 9:1-2) and another to Ms. Terrell being “replaced [in the stacking order] with a nonprotected officer who had not even attended SWAT school” (*Id.* at 10:27) – neither allegation identifies any specific comparator, describes the circumstances of their treatment, or alleges any connection to Ms. Terrell’s protected statuses. Such conclusory comparator allegations are insufficient to support an inference of discriminatory motive. (*Doheny Park Terrace Homeowners Assn., Inc., supra*, 132 Cal.App.4th at 1099.)

The demurrer to the first, second, and third causes of action for Discrimination on the basis of sex, race, and sexual orientation, is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Terrell.

i. Harassment

It is a violation of FEHA for an employer to engage in or permit harassment of an employee in the workplace. (Gov. Code § 12940(j)(1).)

California Jury Instructions No. 2521a describes the essential factual elements that a plaintiff must allege to state a claim for harassment: (1) that Plaintiff was an employee of Defendant’s; (2) that she was subjected to unwanted harassing conduct because of protected characteristic or combination of characteristics; (3) that the harassing conduct was severe or pervasive; (4) that a reasonable person in Plaintiff’s circumstances would have considered the work

environment to be hostile or abusive; (5) that Plaintiff considered the work environment to be hostile or abusive; (6) that a supervisor engaged in the conduct, or that Defendant's supervisors or agents knew or should have known of the conduct, and failed to take immediate and appropriate corrective action; (7) that Plaintiff was harmed; and (8) that the conduct was a substantial factor in causing Plaintiff's harm.

Discrimination and harassment are in separate categories under FEHA; "discrimination refers to bias in the exercise of official actions on behalf of the employer, and harassment refers to bias that is expressed or communicated through interpersonal relations in the workplace." (*Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 707.) Harassment consists of conduct outside the scope of necessary job performance; commonly necessary personnel management actions do not come within the meaning of harassment. (*Ibid.*) Harassment is conduct unnecessary for management of the employer's business or performance of the supervisory employee's job and typically involves bias-motivated hostility, ridicule, or insult. (*Janken, supra*, 46 Cal.App.4th at 63.)

Here, virtually all the conduct alleged against RPD supervisors falls squarely within the category of personnel management: Ms. Terrell's transfer to Beat 7, the FTO denial, the performance evaluation, the negative comment card, the SWAT reassignment, the decision not to select Ms. Terrell for detective, the denial of her transfer requests, and Mr. Castillo's audit of her bodycam footage. (See *ante*, "Alleged Pattern of Targeting by Castillo and Melgoza.") Such decisions, even if improperly motivated, sound in discrimination rather than harassment and cannot form the basis for hostile work environment claim. (*Janken, supra*, 46 Cal.App.4th at 64-65.)

The conduct alleged against Chief French is equally unavailing. Ms. Terrell alleges that Chief French told her that supervisors were "gunning" for her but took no remedial action, and that during Ms. Terrell's exit interview, Chief French acknowledged the targeting but stated that she was unable to protect Ms. Terrell. (Compl. at 10:16-17; 11:13-15.) These allegations describe inaction

and a failure to intervene, not harassing conduct directed at Ms. Terrell.

Furthermore, even assuming *arguendo* that the Court were to find any of the above conduct qualified as harassment, as noted *ante*, Ms. Terrell fails to demonstrate a nexus between the conduct and any of her protected statuses. The Court reiterates that, Ms. Terrell's own allegations belie the claim that she experienced any of the alleged conduct as a result of her protected classes; she explicitly alleges that "[b]ecause of her complaint against Lonso, Terrell faced swift and blatant retaliation." (Compl. at 7:20-21.) Her allegations consistently and repeatedly attribute the actions taken against her to personal retaliation for the complaint lodged against Mr. Lonso, not to her sex, race, or sexual orientation.

The demurrer to the fourth cause of action for Harassment is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Terrell.

i. Failure to Prevent Discrimination and Harassment

FEHA prohibits an employer from failing to "take all reasonable steps necessary to prevent discrimination and harassment from occurring." (Gov. Code, § 12940(k). "Prompt investigation of a discrimination claim is a necessary step by which an employer meets its obligation to ensure a discrimination-free work environment." (*Northrop Grumman Corp. v. Workers' Comp. Appeals Bd.* (2002) 103 Cal.App.4th 1021, 1035.)

FEHA claims for failure to prevent discrimination and harassment are derivative; if the employee has not established discrimination or harassment, the failure-to-prevent claim necessarily fails. (*Carter v. California Dept. of Veterans Affairs* (2006) 38 Cal.4th 914, 925, fn. 4; *Trujillo v. North County Transit Dist.* (1998) 63 Cal.App.4th 280, 289; *Dickson v. Burke Williams, Inc.* (2015) 234 Cal.App.4th 1307, 1309.)

Here, the Court finds that Ms. Terrell fails to state a claim for either Discrimination or Harassment, and, accordingly, her Failure to Prevent Discrimination and Harassment claim fails.

The demurrer to the sixth cause of action for Failure to Prevent Discrimination

and Harassment is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Terrell.

7. Retaliation

FEHA prohibits an employer from discharging or otherwise discriminating against any employee because the employee opposed any practices forbidden under FEHA or because the person filed a complaint, testified, or assisted in any proceeding under FEHA. (Gov. Code § 12940(h).) An employee's conduct also constitutes protected activity for purposes of the anti-retaliation provision of FEHA when the employee opposes conduct that the employee reasonably believes to be discriminatory. (Gov. Code. § 12940(h); *Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1043.)

To state a claim for retaliation under FEHA, a plaintiff must allege (1) she engaged in protected activity, (2) she was subjected to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action. (*Yanowitz, supra*, 36 Cal.4th at 1042.)

The determination as to what constitutes a protected activity is inherently fact driven. (*Rope v. Auto-Chlor System of Washington, Inc.* (2013) 220 Cal.App.4th 635, 652 (superseded by statute on other grounds).) The causal link may be established by an inference derived from circumstantial evidence. (*Morgan v. Regents of University of California* (2000) 88 Cal.App.4th 52, 69.) Evidence that the employer was aware that the plaintiff had engaged in the protected activity and that the adverse employment action followed within a relatively short time thereafter supports an inference that the action was retaliatory and is central to finding a causal link. (*Morgan, supra*, 88 Cal.App.4th at 69-70; *Rope, supra*, 220 Cal.App.4th at 653; *Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 615 (superseded by statute on other grounds).)

In the retaliation context, an adverse employment action is one "that materially affects the terms, conditions, or privileges of employment." (*Yanowitz, supra*, 36 Cal.4th at 1051.)

Here, Ms. Terrell alleges she "experienced severe discrimination, harassment,

and retaliation from her supervisor, Mr. Lonso. He targeted Terrell, singling her out for unwarranted scrutiny and attempting to sabotage her career while providing preferential treatment to her nonprotected colleagues.” (Compl. at 7:14-17.) In April 2020, she and another officer filed a complaint with the department against Mr. Lonso. (*Id.* at 7:17-19.) Ms. Terrell adequately alleges she engaged in protected conduct.

Ms. Terrell also adequately alleges adverse employment actions as discussed *ante*. (Compl. at 7:23-28; 8:15-22; 8:24-9:2; 9:20-10:3; 10:5-17; 10:25-27; 9:12-13.)

Ms. Terrell fails, however, to allege facts sufficient to support an inference of causal connection. In October of 2021, RPD proposed discipline in connection with an off-duty road rage incident in the form of an unpaid 10-hour suspension and removal from Ms. Terrell’s assignment on the Special Response Team. Ms. Terrell’s protected activity (the April 2020 complaint against Mr. Lonso) predated this first alleged adverse employment action by approximately 18 months (Compl. at 7:21-28.) Temporal proximity alone cannot establish causation where the gap between the protected activity and the adverse action is this substantial. (*Le Mere v. Los Angeles Unified School Dist.* (2019) 35 Cal.App.5th 237, 243-244; *Clark County Sch. Dist. v. Breeden* (2001) 532 U.S. 268, 273-274 [A 20-month gap between protected activity and an adverse employment action “suggest[ed], by itself, no causality at all.”])

The next adverse action, a reprimand given in August of 2022 for flying armed a year earlier, prompted Ms. Terrell to write a letter in rebuttal wherein she stated that she believed “this discipline is retaliatory in nature for [her earlier complaint against Lonso].” (Compl. at 8:15-23.) While this allegation reflects Ms. Terrell’s subjective belief, it does not supply the missing causal link. A plaintiff’s own characterization of conduct as retaliatory, without supporting facts is the kind of conclusory allegation that does not survive on demurrer. (*Blank, supra*, 39 Cal.3d at 318; *Doe, supra*, 42 Cal.4th 531, 551, fn. 5.) Moreover, the reprimand itself came some 28 months after the protected activity and stemmed from an anonymous complaint about an incident that

itself occurred in August 2021 – still 16 months removed from the protected activity. The substantial temporal gap between the adverse action and the protected activity remains a significant barrier to causality. (*Le Mere, supra*, 35 Cal.App.5th at 243-244; *Clark County Sch. Dist., supra*, 532 U.S. at 273-274.)

The subsequent adverse actions – the Beat 7 transfer in January 2022, being passed over for detective in November 2022, FTO denial in January 2023, the negative performance evaluation and bodycam audit in March 2023, the negative comment card in June 2023, the SWAT reassignment in September 2023, and the constructive termination in October 2023 – are even further removed from the April 2020 complaint. Causation may be shown circumstantially, including by temporal proximity or by a pattern of antagonism following protected activity, but Ms. Terrell alleges no facts bridging this gap. (*Yanowitz, supra*, 36 Cal.4th at 1046; *Morgan, supra*, 88 Cal.App.4th at 69.) She alleges no expressions of retaliatory intent by any defendant in the intervening period, no period of escalating hostility immediately following the complaint, and no other circumstances connecting the April 2020 complaint to the adverse actions that followed a year-and-a-half later and beyond.

The Complaint's assertion that Mr. Castillo and Mr. Melgoza were close friends of Mr. Lonso is the only offered explanation for why they targeted Ms. Terrell. (Compl. at 8:13-15.) But friendship with the subject of a prior complaint does not, without more, establish that adverse actions taken 18 months or more later were causally linked to the complaint. (*Le Mere, supra*, 35 Cal.App.5th at 243-244.)

The demurrer to the fifth cause of action for Retaliation is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Terrell.

/. Violation of Labor Code sections 233, 234, 246.5

An employer is prohibited from denying an employee the right to use sick leave or discharging, threatening to discharge, demoting, suspending, or in any manner discriminating against an employee for using, or attempting to exercise the right to use, sick leave for the diagnosis, care, or treatment of an existing

health condition of, or preventive care for, an employee or an employee's family member. (Lab. Code, §§ 233(a), 246.5(a)(1).)

There is a "rebuttable presumption of unlawful retaliation if an employer denies an employee the right to use accrued sick days, discharges, threatens to discharge, demotes, suspends, or in any manner discriminates against an employee within 30 days of opposition by an employee to a policy, practice, or act" that is prohibited under Labor Code section 246.5. (Lab. Code, § 246.5(c)(2).)

"An employer absence control policy that counts sick leave taken pursuant to Section 233 as an absence that may lead to or result in discipline, discharge, demotion, or suspension is a per se violation of Section 233. An employee working under this policy is entitled to appropriate legal and equitable relief pursuant to Section 233." (Lab. Code, § 234.)

Here, Ms. Terrell alleges that Mr. Melgoza penalized her for her sick leave usage by citing it as the basis for denying her FTO endorsement and criticizing her in her performance evaluation based on her use of sick leave. (Compl. at 9:20-28, 10:4-9.)

Under the Government Claims Act ("GCA"), a party pursuing a claim against a public entity must present a written claim for damages to the public entity no later than six months after the accrual of the cause of action. (Gov. Code, § 911.2(a).) Failure to do so bars any subsequent suit for money damages. (Gov. Code, § 945.4.) Where GCA compliance is required, "failure to allege compliance or circumstances excusing compliance with the claim presentation requirement subjects a complaint to a general demurrer for failure to state facts sufficient to constitute a cause of action." (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1245.)

As to Labor Code section 233, the statute expressly authorizes a private civil action and provides for both damages and equitable relief, including reinstatement. (Lab. Code, § 233(d)-(e).) The GCA presentment requirement applies to the damages component of this claim, however.

Here, the Complaint contains no allegation that Ms. Terrell presented a claim to the City or RPD prior to filing the suit. (See generally Compl.) Accordingly, because the Complaint fails to allege GCA compliance, the demurrer to the section 233 claim is **SUSTAINED WITH LEAVE TO AMEND**. Ms. Terrell may replead this claim provided she expressly alleges GCA compliance as to any claim for money damages, or limits her claim to equitable relief only.

As to Labor Code sections 234 and 246.5, the remedial framework is set forth in Labor Code section 248.5, which vests enforcement authority in the Labor Commissioner and the Attorney General. (Lab. Code, § 248.5(a), (e).) Unlike Labor Code section 233, neither Labor Code section 234 nor 246.5 contains an express right to private action. The proviso in subdivision (e) limiting persons enforcing the article “on behalf of the public” to equitable, injunctive, or restitutionary relief does not supply a private right of action for an individual employee; rather it restricts the remedies available to public enforcement plaintiffs such as PAGA representatives, and does not speak to individual civil suits by aggrieved employees acting on their own behalf. To the extent that Ms. Terrell seeks to bring a direct civil action under these provisions, the Complaint does not allege a basis for doing so. The demurrer to Labor Code sections 234 and 246.5 claims is therefore **SUSTAINED WITH LEAVE TO AMEND** to allege, if she can, a basis for a private right of action under those statutes.

b. Ms. Sequeira

i. Discrimination (Sex)

It is an unlawful employment practice under FEHA to bar or discharge a person from employment or discriminate against the person in compensation or in terms, conditions, or privileges of employment, based on sex, race, or sexual orientation. (Gov. Code, § 12940(a); see legal standard *ante* at section (V)(a)(i) “Discrimination (Sex, Race, and Sexual Orientation).”)

Here, Ms. Sequeira is a member of a protected class as she is a woman. (Compl. at 19:13-14.)

Ms. Sequeira alleges a series of performance appraisals with overall ratings of

“Meets Expectations” from November 2019 through November 2022, commendations from multiple law enforcement agencies, and a Bureau Commendation in March 2024. (Compl. at 12:1-14; 20-22.) Ms. Sequeira adequately alleges competent performance for the period prior to the adverse actions at issue.

Ms. Sequeira alleges multiple adverse employment actions, including placement on a Performance Improvement Plan (“PIP”) in November 2022, a letter of instruction and removal from the Collateral Intelligence Unit in January 2023, a Letter of Reprimand in February 2024, placement on administrative leave in April 2024, and ultimately termination in July 2025. (Compl. at 12:20-27; 13:1-11; 21-25; 13:28-14:2; 15:7.)

Ms. Sequeira fails, however, to allege facts connecting any of these adverse employment actions to her sex. Her sole comparator allegation, related to her November 2022 PIP for “struggl[ing] with turning in reports in a timely manner,” is unavailing. (Compl. at 12:20-27.) Her allegation that “[o]n information and belief, other nonprotected officers were not subject to the same treatment” is a bare conclusory assertion unsupported by any identifying facts or description of comparable conduct, and is wholly without factual basis for the belief. (*Ibid.*) A pleading on information and belief is insufficient if it fails to “alleg[e] such information that ‘lead[s] [the plaintiff] to believe that the allegations are true.’” (*Doe, supra*, 42 Cal.4th at 551, fn. 5.)

Ms. Sequeira’s termination, the most significant adverse action alleged, followed documented performance deficiencies, a dishonesty finding, and a sustained *Skelly* hearing, none of which she connects to her sex. Her allegation that the Notice of Final Discipline illustrates “disparate treatment of female officers” is conclusory and does not survive demurrer. (*Blank, supra*, 39 Cal.3d at 318.)

The demurrer to the first cause of action for Discrimination on the basis of sex is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Sequeira.

i. Harassment

Harassment under FEHA must consist of conduct outside the scope of necessary job performance, and personnel management decisions cannot form the basis of a hostile work environment claim. (See legal standard *ante* at section (V)(a)(ii) “Harassment;” *Janken, supra*, 46 Cal.App.4th at 64-65.)

Here, the vast majority of conduct alleged by Ms. Sequeira constitutes personnel management: the PIP, the Letter of Instruction, the removal from the Collateral Intelligence Unit, the Letter of Reprimand, the administrative leave, and, ultimately, the termination. These are classic supervisory management functions that sound in discrimination, not harassment. (*Roby, supra*, 47 Cal.4th at 707; *Janken, supra*, 46 Cal.App.4th at 63.)

The only conduct arguably outside the scope of personnel management is Mr. Castillo’s alleged GPS tracking of Ms. Sequeira’s location in violation of RPD policy, and his criticism of her for using the restroom at RPD’s dispatch building rather than at a gas station. (Compl. at 13:6-9.) Ms. Sequeira alleges this criticism was “in marked contrast to the treatment of other officers,” but this passing reference does not constitute a comparator allegation – it identifies no other officer, describes no comparable conduct, and provides no factual basis connecting the differential treatment to Ms. Sequeira’s sex. (*Doe, supra*, 42 Cal.4th at 551, fn. 5.) Absent a nexus to a protected characteristic, Mr. Castillo’s conduct, even if outside the scope of supervisory management, does not constitute FEHA harassment. (*Janken, supra*, 46 Cal.App.4th at 63.)

The demurrer to the fourth cause of action for Harassment is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Sequeira.

i. Failure to Prevent Discrimination and Harassment

FEHA prohibits an employer from failing to take all reasonable steps necessary to prevent discrimination and harassment from occurring. (See legal standard *ante* at section (V)(a)(iii) “Failure to Prevent Discrimination and Harassment;” Gov. Code, § 12940(k).) Claims for failure to prevent discrimination or harassment are derivative; if the employee has not established discrimination or harassment the failure to prevent claim necessarily fails. (*Carter, supra*, 38

Cal.4th at 925, fn. 4; *Trujillo, supra*, 63 Cal.App.4th at 289; *Dickson, supra*, 234 Cal.App.4th at 1309.)

Here, the Court finds that Ms. Sequeira fails to state a claim for either Discrimination or Harassment, and, accordingly, her Failure to Prevent Discrimination and Harassment claim fails.

The demurrer to the sixth cause of action for Failure to Prevent Discrimination and Harassment is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Sequeira.

/. Retaliation

To state a claim for retaliation under FEHA, a plaintiff must allege that she engaged in protected activity, suffered an adverse employment action, and that a causal link existed between the two. (See legal standard *ante* (V)(a)(iv) “Retaliation;” Gov. Code § 12940(h); *Yanowitz, supra*, 36 Cal.4th at 1042.) Protected activity consists of opposing conduct made unlawful by FEHA or participating in FEHA proceedings. (Gov. Code § 12940(h).) A complaint about perceived unfair treatment or personal grievances that does not oppose conduct prohibited by FEHA does not constitute protected activity. (*Yanowitz, supra*, 36 Cal.4th at 1047.)

Ms. Sequeira’s retaliation claim founders at the first element. The Complaint does not identify any instance wherein Ms. Sequeira opposed conduct made unlawful by FEHA or participated in any FEHA proceeding. Her allegations concern performance-related discipline, administrative leave, and the handling of the motor vehicle accident investigation – none of which involve opposition to discrimination, harassment, or retaliation based on a protected characteristic. The Complaint she lodged with RPD against Mr. Aubrey and Mr. England arising from the April 2024 accident-scene encounter concerns a perceived unlawful detention, not opposition to FEHA-prohibited conduct. A complaint about perceived mistreatment unconnected to a protected characteristic does not constitute protected activity under FEHA. (*Yanowitz, supra*, 36 Cal.4th at 1047.)

The retaliation cause of action itself alleges only that Ms. Sequeira “opposed” Defendants’ discrimination, harassment, and retaliation, and that such opposition was a substantial motivating reason for Defendants’ conduct. (Compl. at 25:10-20.) These are bare conclusory recitations of the elements of retaliation that identify no specific act of protected opposition by Ms. Sequeira and provide no factual basis connecting any complaint to any adverse action. Such allegations are insufficient to state a claim. (*Blank, supra*, 39 Cal.3d at 318.)

The demurrer to the fifth cause of action for Retaliation is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Sequeira.

c. Ms. Woody

i. Discrimination (Sex)

It is an unlawful employment practice under FEHA to bar or discharge a person from employment or discriminate against the person in compensation or in terms, conditions, or privileges of employment, based on sex, race, or sexual orientation. (Gov. Code, § 12940(a); see legal standard *ante* at section (V)(a)(i) “Discrimination (Sex, Race, and Sexual Orientation).”)

Here, Ms. Woody is a member of a protected class as she is a woman. (Compl. at 19:13-14.)

Ms. Woody alleges a series of commendations and praise for her work during her tenure with RPD. (Compl. at 16:18-25.) She adequately alleges competent performance.

Ms. Woody’s adverse employment actions are relatively limited; the only concrete adverse employment actions alleged are two Letters of Instruction for report preparation issued on December 30, 2023, and September 20, 2024, and the un-sustained complaint regarding the April 2024 accident scene incident with Ms. Sequeira. (Compl. at 18:4-5, 22-23.) Notably, the Letters of Instruction were issued contemporaneously with a performance appraisal reflecting exemplary performance and precise, well-structured reports – a contradiction the Complaint does not attempt to explain. (*Id.* at 18:25-28.)

Ms. Woody fails, however, to allege any nexus between her sex and any of the above adverse employment actions. Her allegation that Mr. Castillo singled her out for unwarranted criticism and adverse employment actions is a single conclusory paragraph identifying no specific incident, date, or conduct. (Compl. at 16:26-28.) Her comparator allegation – that nonprotected officers were not subject to the same treatment as to the Letters of Instruction – is alleged on information and belief without identifying any comparator or providing any factual basis for the belief. (Compl. at 18:22-24.) These conclusory allegations on information and belief are insufficient to support an inference of discriminatory motive. (*Doe, supra*, 42 Cal.4th at 551, fn. 5.)

The demurrer to the first cause of action for Discrimination on the basis of sex is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Woody.

i. Harassment

As discussed *ante*, a Harassment claim under FEHA must consist of conduct outside the scope of necessary job performance. (See legal standard *ante* at section (V)(a)(ii) “Harassment;” *Janken, supra*, 46 Cal.App.4th at 64-65.)

The Letters of Instruction issued to Ms. Woody for report preparation are squarely within the category of personnel management and cannot constitute harassment as a matter of law. (*Janken, supra*, 46 Cal.App.4th at 64-65.) The allegation that Mr. Castillo singled Ms. Woody out for unwarranted criticism and adverse employment actions fares no better – it is a single conclusory paragraph identifying no specific conduct and *a fortiori* cannot establish the severe or pervasive pattern required to state a Harassment claim.

The April 2024 accident-scene encounter with Mr. England and Mr. Aubrey is the only alleged conduct arguably outside the scope of supervisory management. However, this incident does not support a Harassment claim for two independent reasons. First, even considering the totality of the circumstances, a single encounter of this nature does not plausibly allege conduct sufficiently severe or pervasive such that it altered the conditions of Ms. Woody’s employment it created an abusive working environment. (*Miller v.*

Department of Corrections (2005) 36 Cal.4th 446, 462.) Second, and independently, the incident arose in the context of the investigation into Ms. Sequeira's motor vehicle accident – not because of Ms. Woody's sex or any other protected characteristic. Harassment must be based on the plaintiff's membership in a protected class to be actionable under FEHA. (*Martin v. Trustees of California State University* (2023) 97 Cal.App.5th 149, 170.)

The demurrer to the fourth cause of action for Harassment is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Woody.

i. Failure to Prevent Discrimination and Harassment

FEHA prohibits an employer from failing to take all reasonable steps necessary to prevent discrimination and harassment from occurring. (See legal standard *ante* at section (V)(a)(iii) "Failure to Prevent Discrimination and Harassment;" Gov. Code, § 12940(k).) Claims for failure to prevent discrimination or harassment are derivative; if the employee has not established discrimination or harassment the failure to prevent claim necessarily fails. (*Carter, supra*, 38 Cal.4th at 925, fn. 4; *Trujillo, supra*, 63 Cal.App.4th at 289; *Dickson, supra*, 234 Cal.App.4th at 1309.)

Here, the Court finds that Ms. Woody fails to state a claim for either Discrimination or Harassment, and, accordingly, her Failure to Prevent Discrimination and Harassment claim fails.

The demurrer to the sixth cause of action for Failure to Prevent Discrimination and Harassment is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Woody.

j. Retaliation

To state a claim for retaliation under FEHA, a plaintiff must allege that she engaged in protected activity, suffered an adverse employment action, and that a causal link existed between the two. (See legal standard *ante* (V)(a)(iv) "Retaliation;" Gov. Code § 12940(h); *Yanowitz, supra*, 36 Cal.4th at 1042.) Protected activity consists of opposing conduct made unlawful by FEHA or participating in FEHA proceedings. (Gov. Code § 12940(h).)

Ms. Woody's Retaliation claim fails at the first element for the same reason as Ms. Sequeira's – the Complaint does not identify any instance in which Ms. Woody opposed conduct made unlawful by FEHA or participated in any FEHA proceeding.

Ms. Woody's only arguable protected activity is her April 2024 complaint against Mr. England and Mr. Aubrey arising from the accident-scene encounter. However, as discussed *ante*, that complaint concerned a perceived unlawful detention during the course of an investigation, not an opposition to discrimination, harassment, or retaliation based on a protected characteristic. A complaint about perceived unfair treatment or personal grievances that does not oppose conduct prohibited by FEHA does not constitute protected activity. (*Yanowitz, supra*, 36 Cal.4th at 1047.)

As with Ms. Sequeira, the retaliation cause of action itself alleges only that Ms. Woody "opposed" Defendants' discrimination, harassment, and retaliation, without identifying any specific act of protected opposition or providing any factual basis connecting a complaint to any adverse action. (Compl. at 25:10-14.) These are bare, conclusory recitations of elements insufficient to state a claim. (*Blank, supra*, 39 Cal.3d at 318; *Doe, supra*, 42 Cal.4th 531, 551, fn. 5.)

The demurrer to the fifth cause of action for Retaliation is therefore **SUSTAINED WITH LEAVE TO AMEND** as to Ms. Woody.

VI. Conclusion

For the foregoing reasons, Defendants City of Richmond and Richmond Police Department's demurrer to the first through seventh causes of action is **SUSTAINED IN ITS ENTIRETY WITH LEAVE TO AMEND** as to all applicable Plaintiffs.

Plaintiff has 15 days from service of notice of entry of this order to file any amended pleading.